

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 05/11/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
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Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
***HEARING ON MOTION IN RE: AN ORDER TO HOLD ALLISON RENEE BRACY IN CONTEMPT OF COURT**
FILED BY: PARKER, SHILOH A.
TENTATIVE RULING:

Plaintiff Shiloh A. Parker ("Plaintiff") filed a Motion for an Order to Hold Allison Renee Bracy in Contempt of Court on September 29, 2025 (the "Motion for an Order regarding Contempt"). The Motion for an Order regarding Contempt was initially noticed for hearing on October 31, 2025.

Plaintiff filed a Motion for Leave to Amend Complaint on November 17, 2025 (the "Motion for Leave

to Amend”). The Motion for Leave to Amend was set for hearing on March 6, 2026. The motion sought leave to file an amended complaint to “remove the causes of action that Plaintiff dismissed and to add new factual allegations that Plaintiff recently discovered.”

Defendant Jendayi Saada (“Defendant Saada”) filed a Demurrer on December 18, 2025 (the “Demurrer”). The Demurrer was set for hearing on April 10, 2026. The Demurrer was directed at the remaining thirteenth cause of action for Defamation.

Plaintiff filed a First Amended Motion for Leave to Amend Complaint on January 8, 2026 (the “Amended Motion for Leave to Amend”). The Motion for Leave to Amend was set for hearing on May 11, 2026. Plaintiff’s Amended Motion for Leave to Amend indicates that “The proposed amended complaint reflects the recently dismissed causes of actions, adds factual allegations related to newly discovered evidence, and updates the complaint to reflect Defendant BRACYHAWKINSLAW’s new name of: BRACY LAW PC.”

Upon reassignment of the case to Department 34 in early January 2026, all of the pending motions and the Demurrer were consolidated for hearing on May 11, 2026 in Department 34. See Notice and Order of Reassignment of Case dated January 5, 2026.

Background

Plaintiff filed a First Amended Complaint (“FAC”) on August 8, 2025. Certain causes of action were thereafter dismissed from the FAC, leaving only the cause of action for “Defamation.” See Request for Dismissal filed November 10, 2025.

Thereafter, the Motion for Leave to Amend was filed on November 17, 2025, followed by the Amended Motion for Leave to Amend after the Demurrer was filed.

Analysis

1. Leave to Amend

The court has discretion “upon any terms as may be just” to allow an amendment to any pleading. Code Civ. Proc. § 473(a)(1); see Rule 3.1324 of California Rules of Court (“CRC”); see also *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 (“*Hong Sang Market, Inc.*”); see also Weil & Brown, et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 6:602 *et seq.* Leave to amend a pleading is entrusted to the sound discretion of the trial court. *Hong Sang Market, Inc.*, *supra*, 20 Cal.App.5th at 488.

The Court has considered the opposition to the request for leave to amend. See Opposition filed April 29, 2026 (“Opposition”), p. 7.

In the exercise of its discretion, the Court finds good cause to permit the requested amendment.

2. Demurrer

In light of the granting of leave to amend, the pending Demurrer is dropped from calendar. Once an amended complaint has been filed, further demurrer(s) may be raised in due course.

3. Motion for an Order regarding Contempt

While it is not clear to the Court that proper service was done and notice given in connection with the Motion for an Order regarding Contempt, an Opposition was filed by the attorney Allison R. Bracy and the named defendants.

The opposition papers, including the Declaration of Allison R. Bracy filed April 29, 2026 (“Bracy

Declaration”) address the merits of the assertions of supposed misconduct raised in the initial motion. The credible recitation of the events in the Bracy Declaration rebuts the largely second hand recitation of the supposed “callous disregard for the law” attributed to the attorney, including “kicking out” the process server and making accusations that the process server was “trespassing.” Upon review, the Court concludes that no grounds have been shown to issue an order to show cause regarding contempt or to take any further action.

4. Vexatious Litigant

The Court declines to *sua sponte* issue “an OSC to determine whether Plaintiff should be considered a vexatious litigant...” See Opposition, p. 7.

Nonetheless, the Opposition rightly points out a number of papers already filed early on in this case which fail to adhere to any proper procedural framework such as the “Notice of Material Misrepresentation by Attorney Jeffrey M. David” filed December 23, 2025, among other papers. See Opposition, pp. 10-11.

Plaintiff is ordered to refrain from filing serial papers, including “declaration(s)” or “notice(s)” not properly submitted in conjunction with ex parte applications or noticed motions or without a good faith procedural basis for the filing of such materials. THIS IS THE FIRST ADMONISHMENT AND ORDER BY THE COURT TO REFRAIN FROM SUCH CONDUCT. Failure to comply with this order and/or conduct which frustrates or obstructs such order may result in the imposition of sanctions against you, including, but not limited to, an award of attorneys’ fees and costs and/or monetary sanctions up to \$1,500 pursuant to Code of Civil Procedure section 177.5, striking of filed papers, terminating sanctions or other appropriate remedies.

Disposition

The Court further finds and orders as follows:

1. The Amended Motion for Leave to File is GRANTED. Plaintiff is granted leave to file an amended complaint herein. Such amended complaint shall be filed and served **within ten (10) days of notice of entry of this order**. The Motion for Leave to Amend is DENIED as MOOT.
2. The Demurrer is DROPPED from calendar, without prejudice, in light of the foregoing.
3. The Motion for an Order regarding Contempt is DENIED.
4. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
***HEARING ON MOTION IN RE: LEAVE TO AMEND COMPLAINT**
FILED BY: PARKER, SHILOH A.
TENTATIVE RULING:

See LINE 1 above.

3. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: SAADA, JENDAYI
TENTATIVE RULING:

See LINE 1 above.

4. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
*HEARING ON MOTION IN RE: PLAINTIFF'S FIRST AMENDED MOTION FOR LEAVE TO AMEND
COMPLAINT
FILED BY: PARKER, SHILOH A.
TENTATIVE RULING:

See LINE 1 above.

5. 9:00 AM CASE NUMBER: C25-01145
CASE NAME: COMMUNITY FUND 2, LLC, VS. VIKTORIYA VOLZHENINA
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S 1ST AMENDED COMPLAINT
FILED BY: VOLZHENINA, VIKTORIYA
TENTATIVE RULING:

Denied as moot as Defendant's demurrer is SUSTAINED in full. See Line 6 below.

6. 9:00 AM CASE NUMBER: C25-01145
CASE NAME: COMMUNITY FUND 2, LLC, VS. VIKTORIYA VOLZHENINA
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: VOLZHENINA, VIKTORIYA
TENTATIVE RULING:

Background and Factual Allegations

Plaintiff owns real property located at 1532 Chanslor Avenue, Unit V, in Richmond, California ("Property"). (¶ 7.) The Property is subject to the CC&Rs of Defendant HOA. (¶ 8.) Defendant Volzhenina is the President of the Defendant HOA, as well as the owner of real property located at 1532 Chanslor Avenue, Unit N. (¶¶ 6, 9.) This unit is directly below Plaintiff's Property. (¶ 9.)

The Complaint alleges that while Plaintiff was attempting to sell the Property, Defendants made representations to third parties possibly interested in purchasing the Property that it had "squeaky floors" even though there was no obligation to disclose such information. (¶¶ 11-13.) Based on these allegations, Plaintiff asserts three causes of action: (1) breach of the recorded CC&Rs; (2) breach of fiduciary duty; and (3) intentional interference with contractual relations.

Standard for Demurrer

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe*, supra, 42 Cal.4th at 551, fn. 5.)

A complaint must be “liberally construed” and a demurrer “overruled if any cause of action is stated by the plaintiff.” (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (Code Civ. Proc. § 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Analysis

As noted above, the FAC alleges three causes of action. Defendant’s notice indicates that the demurrer is made on the ground that the FAC “is unable to overcome the Business Judgment Rule insulating Defendant Volzhenia from liability.” (Notice at 1:27-2:1.) Defendant does not address the causes of action individually, nor argue that they are not properly plead. Instead, the parties both focus their arguments on the applicability of the business judgment rule. As such, the Court will only address the pleading standards related thereto.

Business Judgment Rule

The business judgment rule has been codified in California at Corporations Code section 309. “But the common law rule ‘has two components—one which immunizes directors from personal liability if they act in accordance with its requirements, and another which insulates from court intervention those management decisions which are made by directors in good faith in what the directors believe is the organization’s best interest. [Citation.] Only the first component is embodied in Corporations Code section 309.’” (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1045 citations omitted.)

“The broader rule is ‘a judicial policy of deference to the business judgment of corporate directors in the exercise of their broad discretion in making corporate decisions.’” (*Ibid.*) “[It] is based on the premise that those to whom the management of a business organization has been entrusted, and not the courts, are best able to judge whether a particular act or transaction is helpful to the conduct of the organization’s affairs or expedient for the attainment of its purposes.” (*Ibid.*) “The rule establishes a presumption that directors’ decisions are based on sound business judgment, and it prohibits courts from interfering in business decisions made by the directors in good faith and in the absence of a conflict of interest.” (*Ibid.*) “‘A hallmark of the business judgment rule is that a court will not substitute its judgment for that of the board if the latter’s decision can be ‘attributed to any rational business purpose.’” (*Ibid.* quoting *Katz v. Chevron Corp.* (1994) 22 Cal.App.4th 1352, 1366.)

“An exception to the presumption afforded by the business judgment rule accordingly exists in ‘circumstances which inherently raise an inference of conflict of interest’ and the rule ‘does not shield actions taken without reasonable inquiry, with improper motives, or as a result of a conflict of

interest.” (*Berg & Berg*, supra, 178 Cal.App.4th at 1046 citations omitted.)

“But a plaintiff must allege sufficient facts to establish these exceptions.” (*Ibid.*) “To do so, more is needed than ‘conclusory allegations of improper motives and conflict of interest. Neither is it sufficient to generally allege the failure to conduct an active investigation, in the absence of (1) allegations of facts which would reasonably call for such an investigation, or (2) allegations of facts which would have been discovered by a reasonable investigation and would have been material to the questioned exercise of business judgment.’” (*Id.* at 1045-46 quoting *Lee v. Interinsurance Exchange* (1996) 50 Cal.App.4th 694, 715.)

“In most cases, ‘the presumption created by the business judgment rule can be rebutted only by affirmative allegations of facts which, if proven, would establish fraud, bad faith, overreaching or an unreasonable failure to investigate material facts. [Citation.] Interference with the discretion of directors is not warranted in doubtful cases.’” (*Berg & Berg*, supra, 178 Cal.App.4th at 1046.)

The failure to “sufficiently plead facts to rebut the business judgment rule or establish its exceptions may be raised on demurrer, as whether sufficient facts have been so pleaded is a question of law.” (*Berg & Berg*, supra, 178 Cal.App.4th 1046 citations omitted.)

Regarding Defendant Volzhenia, the FAC alleges that she was the President of the HOA and acted as an “officer or agent of the HOA.” (¶16) After Plaintiff entered into a sale contract for its Unit, the HOA and Volzhenia were notified of the sale and “transfer disclosure documents were requested from the HOA pursuant to section 4525 et. seq. of the California Civil Code.” (¶11.) “In response to the request for transfer disclosure documents, **the HOA provided a statement** that included a representation that the Premises had ‘squeaky’ floors and that they must be fixed before transfer of ownership.” (¶12 emphasis added.) “In addition, **the HOA stated** that an inspection was required to confirm the issue had been remediated.” (*Ibid.* emphasis added.) The FAC then alleges that the “HOA and Volzhenia made these representations despite no obligation to do so.” (¶13.)

In essence, the FAC alleges that the HOA was requested to provide a disclosure as required under the Civil Code. The response from the HOA included a representation that the Property had ‘squeaky’ floors that were required to be fixed before transfer of ownership would be approved. There are no allegations that this statement was false or incorrect.

These allegations fall squarely within the business judgment rule as outlined above. The HOA board was tasked with providing a required disclosure regarding the condition of the Property before ownership could be transferred. They provided a statement that included a representation about a known issue with the Property. The decision to include that information in the response is presumed to be done based on the “sound business judgment” of the directors of the HOA. As such, to avoid the bar of the business judgment rule, the FAC must include factual allegations that “would establish fraud, bad faith, overreaching or an unreasonable failure to investigate material facts.” (*Berg & Berg*, supra, 178 Cal.App.4th at 1046.)

There are no such allegations in the FAC. To begin with, there are no allegations that contend that the floors were not ‘squeaky,’ or that the statements made by the HOA were false. Instead, the allegation is that HOA was not obligated to disclose this information. (¶13.) This allegation appears to acknowledge that the floors were ‘squeaky,’ but Plaintiff believes that the HOA should not have told the prospective buyer this fact. Additionally, there are no allegations that the HOA did not investigate the issue.

Plaintiff argues in its opposition that there was no business purpose for the disclosure, the decision to

disclose was “not an honest, unbiased judgment after the exercise of reasonable diligence,” and there was “no legitimate business decision” made here. (Opp. at 3:23-4:6.) The FAC, however, provides no facts to support these claims. The law imparts a presumption that the HOA’s actions are in fact reasonable and done for a legitimate purpose. Plaintiff’s duty is to allege *facts* which support a finding that “if proven, would establish fraud, bad faith, overreaching or an unreasonable failure to investigate material facts.” (*Berg & Berg*, supra, 178 Cal.App.4th at 1046.) The FAC fails to provide any such facts.

Ms. Volzhernia’s Liability Independent of her Position in the HOA

Plaintiff also argues that Ms. Volzhernia is “not named as a defendant solely in her capacity as a board member,” but also individually. As such, the business judgment rule does not apply to Ms. Volzhernia in her individual capacity.

The FAC, however, fails to allege any actions by Ms. Volzhernia in her individual capacity to support any of Plaintiff’s claims. As outlined above, the basis of the claim is the statement made by **the HOA** in response to the request for transfer disclosure documents. (¶¶ 11-13.) While Ms. Volzhernia is alleged to be a member of the board of the HOA, she did not individually make any disclosure. Instead, the response to the request for transfer disclosure documents was made by the HOA – not by Ms. Volzhernia personally.

While Plaintiff argues that Ms. Volzhernia had a conflict of interest, the disclosure was not made by Ms. Volzhernia solely or personally. The entire board issued the disclosure according to the FAC. There are no allegations that the entire board, or at least a majority thereof, had a conflict of interest in this transaction.

Leave to Amend

“Our Supreme Court has observed that where ‘plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.’” (*Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412 quoting *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

As this is the first time the Court has addressed these issues, Plaintiff is granted leave to amend.

Conclusion

Defendant Volzhernia’s demurrer to the FAC is **SUSTAINED**. Leave to amend is **GRANTED**. Plaintiff shall file any amended complaint within 10 calendar days of entry of the order on this Demurrer.

7. 9:00 AM CASE NUMBER: C25-01478

CASE NAME: EMAD ISKANDER VS. JOAN OCAMPO (EMPLOYEE)

*HEARING ON MOTION IN RE: MOTION FOR ORDER VACATING AND SETTING ASIDE DEFAULT JUDGMENT

FILED BY:

TENTATIVE RULING:

Before the Court is a motion to vacate default judgment (“Motion”) filed by plaintiff Emad “Ed” Iskander (“Plaintiff”) which seeks relief from this Court’s earlier sustaining of a demurrer to his original complaint without leave to amend.

For the reasons set forth below, the Court's ruling is to DENY Plaintiff's Section 473(b) Motion to be relieved of an order taken against him.

Background – Facts Alleged in Complaint

Plaintiff filed the original complaint in this matter on May 29, 2025. The Complaint alleges causes of action for general negligence, an unspecified intentional tort, and premises liability against defendants Starbucks and Joan Ocampo ("Defendants"). (Complaint, pp. 3-6.) Plaintiff alleges that on May 29, 2023, he was parked in the parking lot outside of a Starbucks located at 502 Center Ave., Martinez, CA 94553. (*Id.*, at pp. 5, 7.) Although he had spent many thousands of dollars at the store, on May 29, 2023, at the time of the incident, he had not entered the store and had no intention of doing so. (*Id.*, at p. 7.) Around 4:05 pm, a Starbucks employee, Joan Ocampo, called the police on Plaintiff. (*Ibid.*) Shortly thereafter, two Martinez police officers arrived and briefly detained Plaintiff before requesting that he move his vehicle further away from the Starbucks store. (*Ibid.*)

Plaintiff alleges that he subsequently attempted to contact the Starbucks store manager and the district manager but was unable to reach them. (Complaint, pp. 7-8.) Plaintiff alleges that he "can only surmise that this conduct was deeply nefarious in inspiration and, ultimately, discriminatory in the most insidious and perverse sense. This egregious conduct not only represented a great violation of my personal human dignity, but also constituted a gross infraction of my fundamental civil rights. Both the barista in question, as well as the organization as a whole, have behaved not only illegally and unethically, but with extreme malicious intent." (*Id.*, at p. 8.) Plaintiff alleges that he feels humiliated and suffers from PTSD due to the incident. (*Ibid.*) In addition, on multiple occasions, Plaintiff has called the police when traveling to the area that the store in question is located, to alert them of his presence in the area and to possibly expect a harassment-type call to be placed against him. (*Ibid.*)

Defendants filed a demurrer to Plaintiff's complaint on September 25, 2025, which was assigned a hearing date of December 22, 2025. The opposition was due to be filed 9 court days before the hearing, or December 9, 2025. A case management conference was scheduled for October 22, 2025, and on October 21, 2025, Plaintiff submitted a declaration requesting a continuance of the CMC due to, in part, being the "one and only provider/caretaker" for his father. (10/21/2025 Iskander Decl., p. 2.) The CMC went forward on October 22, 2025, and Plaintiff appeared and represented his intention to retain counsel and asked the Court for additional time to oppose the demurrer. (Kara A. Cole Decl. ISO Opposition, ¶ 7.) The Court denied the extension request as Plaintiff had ample time to secure counsel before the December hearing and related deadlines. (*Ibid.*) Plaintiff did not file an opposition to the demurrer on December 9, 2025. On December 12, 2025, Defendants filed a notice of non-opposition. (Cole Decl., ISO Opposition, ¶ 7.) On December 21, 2025, the tentative ruling issued, sustaining the demurrer without leave to amend. (*Id.*, at ¶ 8.) Plaintiff failed to contest the tentative. Plaintiff did attend the hearing, however, but the court confirmed that he had failed to contest the tentative and adopted its tentative in full. (*Ibid.*) Plaintiff filed this motion for relief from an order on December 29, 2025.

Legal Standard

A "court may, upon any terms as may be just, relieve a party or the party's legal representative from a

judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code of Civil Proc. §473, subd. (b).)

"In a motion under section 473 the initial burden is on the moving party to prove excusable neglect by a 'preponderance of the evidence.' " (*Kendall v. Barker* (1988) 197 Cal.App.3d 619, 624.) "An application for relief under section 473 is addressed to the sound discretion of the trial judge." (*Id.*, at p. 623.) "While section 473 authorizes a court to relieve a party from default suffered through inadvertence, surprise, excusable neglect or mistake, 'these words are not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category.' " (*Ibid.*) "[A]ffidavits or declarations setting forth only conclusions, opinions or ultimate facts are insufficient." (*Id.*, at p. 624.)

"The proposition that a trial court may construe a motion bearing one label as a different type of motion is one that has existed for many decades. 'The nature of a motion is determined by the nature of the relief sought, not by the label attached to it. The law is not a mere game of words.' " (*Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 193.)

Analysis

Plaintiff's motion to vacate default judgment ("Motion") is actually a motion for relief from an order taken against him, specifically, the January 14, 2026 order sustaining Defendants' demurrer to Plaintiff's complaint, without leave to amend. The Court will construe it as such. (*Sole Energy Co. v. Petrominerals Corp.*, *supra*, 128 Cal.App.4th at 193.)

Plaintiff argues that the law favors controversies to be disposed of on the merits, that the court has wide discretion to grant Section 473 motions, and that Section 473(b) is a remedial statute that should be liberally construed, and that doubts existing as to the propriety of setting aside default or an order, should be resolved in favor of a hearing on the merits. (Motion, p. 2.)

Plaintiff argues that the ruling sustaining Defendant's demurrer without leave to amend was primarily based on the absence of a filed opposition, but that California law strongly favors disposition of cases on their merits. (Motion, p. 5.) Plaintiff provides a direct quote from *Huh v Wang* (2007) 158 Cal.App.4th 1406, for the proposition that "illness or disability which reasonably prevents compliance with procedural deadlines constitutes excusable neglect." (*Id.*, at p. 7.) However, neither the word "illness" nor "disability" appear in that case, so it is unclear where Plaintiff extrapolated that as it is not a direct quote from that case. Plaintiff also argues that extraordinary family hardship supports relief, that he has acted diligently and in good faith, and that denial of leave to amend was premature and an abuse of discretion. (*Id.*, at pp. 7-8.) Plaintiff cites *Elston v. City of Turlock* (1985) 38 Cal.3d 227, for the proposition that "Where the interests of justice so require, doubts should be resolved in favor of granting relief." While that is not a direct quote in *Elston*, it does similarly hold that "because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (*Id.*, at p. 233.)

In their Opposition, Defendants argue that the Motion provides no basis upon which relief should be granted. (Opposition, pp. 5-6.) Defendants go on to argue that despite Plaintiff's claims of medical impairments and caregiving responsibilities, he has still filed court documents and made appearances in this case, selectively. They argue that the *Huh* case cited by Plaintiff supports denying the instant

motion because it states, “[a]s expressly worded, section 473(b) applies only to relief sought in response to defaults, default judgments or dismissals.” (Opposition, p. 8.) The *Huh* case does go on to point out that “courts have construed the provision to reach other circumstances deemed to be procedural equivalents.” (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1415.) Defendants also argue that the sustaining of the demurrer without leave to amend was proper and that they will be prejudiced if the Motion is granted. (Opposition, pp. 9-11.)

In the Reply, Plaintiff argues that Defendants improperly characterize his failures to oppose the demurrer and contest the tentative as a “conscious and deliberate decision,” he rebuts what he refers to as misrepresentations about his character and argues that the “perfect storm” of mitigating factors constitutes excusable neglect. (Reply, pp. 2-11.) Plaintiff discusses that he is the sole caretaker of his father and that his mother and sister have passed away, and that he suffers from exhaustion and sleep deprivation, that he had retinal detachment surgery, that his residence sustained storm damage, and that he has been diligent in seeking counsel. (*Id.*, at pp. 8-10.) Plaintiff finally asserts his commitment to amend the complaint, which he has already drafted, and affirms his right to a jury trial. (*Id.* at p. 11.)

The Court is not concerned with the merits of the complaint or demurrer, that issue is not before the Court. The focus here is on the instant Section 473(b) motion and whether the statutory requirements are satisfied such that the Court may provide the relief requested. “[A] party who seeks relief under [section 473] must make a showing that due to some mistake, either of fact or of law, of himself or of his counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or order from which he seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he is entitled to it, and the assumption of this burden necessarily requires the production of evidence.” (*Kendall v. Barker* (1988) 197 Cal.App.3d 619, 623-624.) “[A]ffidavits or declarations setting forth only conclusions, opinions or ultimate facts are insufficient.” (*Id.*, at p. 624.)

Here, Plaintiff’s declaration in support of his Motion states, “[m]y failure to file a written opposition to Defendant’s demurrer was not intentional and resulted from mistake and excusable neglect.” This is conclusory and insufficient. There is nothing in the supporting declaration about Plaintiff’s alleged retinal detachment, the dates of that, or of any emergency that occurred to his property or of any medical conditions of his or his father’s that could support a finding of excusable neglect.

Generalized life circumstances or challenges untethered to specific circumstances surrounding the ability to timely oppose a motion or follow the court rules regarding contesting a tentative ruling is insufficient. See *Huh v. Wang, supra*, 158 Cal.App.4th at 1423 (“Neglect is excusable only if a reasonably prudent person in similar circumstances might have made the same error.”).

Further, the Court notes that Plaintiff did attend the case management conference on October 22, 2025, and was present when Judge Devine denied the request to continue the demurrer hearing so as to extend the opposition due date and was thus aware of his duties and obligations. Defendant even attended the hearing on December 22, 2025, despite not contesting it. After the Court sustained Defendants’ demurrer without leave to amend, Plaintiff has been very active in this matter—he has filed multiple ex parte applications and has been diligent in pursuing relief from that order. However, the law requires evidence to be submitted to support a request for relief from an order pursuant to Section 473(b). The Court notes that there are documents attached to the declaration, for which no

foundation is laid, but even if the Court were to consider those (a notarized letter from his father, Milad “Mike” Iskander; an email from Maggie Hanna, a director of a care facility Plaintiff’s father stayed in for several months, and a 2015 death certificate of his relative, Maha Iskander), they do not persuade the Court by a preponderance of evidence that Plaintiff did not oppose the demurrer or contest the tentative based on excusable neglect.

Ruling

For the reasons discussed above, Plaintiff’s Section 473(b) motion to be relieved of an order taken against him is DENIED.

8. 9:00 AM CASE NUMBER: C25-01722

CASE NAME: ANDREW CIBULA VS. ZEN DAY SPA

HEARING ON DEMURRER TO: ANSWER

FILED BY: CIBULA, ANDREW

TENTATIVE RULING:

Plaintiff Andrew Cibula demurs to the answer filed by defendant Kwan Fan Cheung. The demurrer is **SUSTAINED WITH LEAVE TO AMEND as to defenses 2, 7, 19, 22, 23, 24, and 25 and OVERRULED with respect to defenses 8 and 13**, as discussed below. Defendant Cheung shall file and serve an amended answer consistent with this ruling on or before May 21, 2026.

I. Factual and Procedural Background

Plaintiff filed his complaint on June 17, 2025 against Zen Day Spa and Kwan Cheung. The complaint alleges plaintiff suffered injury on June 24, 2023 when plaintiff was exposed to legionella, which defendants negligently allowed to grow and remain in a hot tub they stored in a poorly ventilated area. The complaint alleges two causes of action: one for general negligence and another for premises liability.

In response, Cheung filed an answer on December 16, 2025. The answer is a general denial, and includes 26 “affirmative defenses” as follows: (1) Failure to State Cause of Action); (2) Comparative Fault of Plaintiffs; (3) Assumption of Risk; (4) Lack of Notice; (5) No Duty Owed; (6) No Causation/Proximate Cause; (7) Failure to Mitigate; (8) Acts of Third Parties; (9) Statute of Limitations; (10) No Duty/Lack of Possession, Operation, Control or Right to Control (Landlord Non-Liability); (11) Proposition 51 (Several Liability for Noneconomic Damages); (12) Tenant Control/No Duty to Warn; (13) Intervening / Superseding Cause; (14) Compliance With Applicable Laws, Codes and Standards; (15) Contractual Allocation of Duties; (16) Apportionment; (17) Comparative Fault-Tenant/Co-Defendants; (18) Privette Doctrine / Independent Contractor; (19) Lack of Standing; (20) Punitive Damages Not Warranted; (21) Damages Limited by Law; (22) Speculative or Excessive Damages; (23) Compliance with Statute; (24) Excuse for Statutory Violation; (25) Statutory Causation; and (26) Reservation of Rights.

Affirmative defenses 10 and 12 specify that defendant Cheung is the landlord and that the tenant is responsible for any injuries.

Along with the answer, Cheung filed a cross-complaint, naming Zen . GL Inc. and Huan Fen Guan, doing business as Zen Day Spa. In the cross-complaint, Cheung alleges that Huan Fen Guan was, at all relevant times, a tenant who leased the property and operated a business known as Zen Day

Spa, either individually or through cross-defendant Zen . GL, Inc. Accordingly, the cross-complaint seeks indemnity and other relief against cross-defendants.

After efforts to meet and confer that failed to resolve the issues (see Declaration of Pete Clancy in Support of Plaintiff's Demurrer), plaintiff brought the present demurrer on the basis that many of the defenses fail to state sufficient facts to constitute a defense. Defendant opposes the demurrer, arguing that by including references to the tenant business (in affirmative defenses 10 and 12), the requisite facts have been alleged.

II. Standard

A party against whom an answer has been filed may object by demurrer on the following grounds: (a) the answer does not state facts sufficient to constitute a defense, (b) the answer is uncertain, or (c) where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral. (Code Civ. Proc., § 430.20.)

The grounds for a demurrer must appear on the face of the challenged pleading, or from matters subject to judicial notice. (Code Civ. Proc. § 430.30(a).) In evaluating the sufficiency of the challenged pleading, all material facts properly pleaded are treated as true, but not contentions, deductions, or conclusions of fact or law. (*Moore v. Conliffe* (1994) 7 Cal.4th 634, 638, citing *Serrano v. Priest* (1971) 5 Cal.3d 584, 491.)

III. Discussion

Plaintiff demurs to the following affirmative defenses for their failure to plead sufficient facts: 2, 7-8, 13, 19, 22, and 23-25.

Code of Civil Procedure § 431.30(b) provides that an answer to a complaint shall contain: (1) [t]he general or specific denial of the material allegations of the complaint controverted by the defendant, and (2) [a] statement of any new matter constituting a defense. "The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff. Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as 'new matter.'" (*State Farm Mut. Auto. Ins. Co. v. Superior Court* (1991) 228 Cal.App.3d 721, 725, internal citations omitted.) Such "new matter" is also known as "an affirmative defense." (*Advantec Group, Inc. v. Edwin's Plumbing Co., Inc.* (2007) 153 Cal.App.4th 621, 627.) A defendant must set forth only the "essential facts" of the affirmative defense, "sufficient to acquaint [plaintiff] with the nature, source and extent" of the defense. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 608.) This is known as the "fair notice" test.

Affirmative defenses cannot be "proffered in the form of terse legal conclusions." (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.) Rather, affirmative defenses must aver facts "as carefully and with as much detail as the facts which constitute the cause of action and which are alleged in the complaint." (*Ibid.*; *South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732 ["Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action."]) What is required are ultimate facts. (See *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 531, 550; *FPI Development Inc., supra*, at 384.) Even where a defense is defectively pled, it may be allowed if the defendant's pleading gives sufficient notice to enable the plaintiff to prepare to meet the defense, in part because un-pled defenses are waived. (See *Harris v. City of Santa Monica* (2013) 56 Cal. 4th 203, 240.)

A defendant may set up as many defenses as he or she may have, but they must be

separately stated and must “refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished.” (Code Civ. Proc. § 431.30(g).)

With the exception of the 8th affirmative defense (Acts of Third Parties) and the 13th affirmative defense (Intervening / Superseding Cause), the facts related to the landlord-tenant relationship are not sufficient to establish any “new matter” that would constitute the bases for the alleged defenses. Further, as mentioned in the reply, none of the affirmative defenses are correlated with the two causes of action asserted in the complaint. In other words, the answer fails to clarify which of the claims is defeated by each defense.

The Court notes, however, that the Answer’s boilerplate defenses are as ubiquitous in civil litigation practice as they are legally impermissible, and the Court respectfully questions whether this motion is the best use of parties’ time and resources, or those of the Court. The Court acknowledges that it has been said that demurrers can be used to eliminate “boilerplate” affirmative defenses often appearing in answers (e.g., “waiver,” “estoppel,” “unclean hands”, etc.), but such demurrers have also been noted as rare, probably because they are not worth the cost when the same result (or arguably, better results) can be achieved by serving requests for admission or standard form interrogatories seeking the bases for the affirmative defenses. (See 1 Weil & Brown, Civil Procedure Before Trial § 7.35.1 (Rutter Group 2018); see also Chafetz, “Civil Law and Motion Practice in Contra Costa County,” Contra Costa Lawyer, November 2018, p. 33 [“As for demurrers to answers – really?”].)

The demurrer is overruled as to the eighth and thirteenth affirmative defenses. As for the remaining defenses at issue, the demurrer is sustained. However, based on the liberal standard for leave to amend, and since this is the first contested answer, defendant may amend. In amending the answer, the defenses shall each be correlated to the cause of action to which it is directed.

9. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
***HEARING ON MOTION IN RE: DETERMINATION OF SANCTIONS**
FILED BY:
TENTATIVE RULING:

Plaintiff Rassoul Malboubi (“Plaintiff”) filed a Motion to Compel Further Verified Responses on October 30, 2025 (the “Motion to Compel Further Responses”). The Motion to Compel Further Responses was set for hearing on March 2, 2026.

The Motion to Compel Further Responses was denied by the Court. See Order entered March 3, 2026 (the “March 3, 2026 Order”). The Court made certain findings and orders regarding the imposition of monetary sanctions as part of that ruling (the “Monetary Sanctions”). *Id.*

The determination of Monetary Sanctions was set over for further hearing on May 11, 2026, and a further briefing schedule set.

Sanctions

As ordered, defendant City of Richmond (the “City”) filed a supplemental declaration addressing the amount of Monetary Sanctions. See Declaration of Kevin D. Siegel in Support of Defendant City of Richmond’s Request for Sanctions filed April 15, 2026 (the “Supplemental Declaration”). That Supplemental Declaration seeks a total of \$4,971.00 in Monetary Sanctions. *Id.* at ¶¶8-11.

Plaintiff filed an Opposition on April 20, 2026 ("Opposition") which the Court has considered. He asserted, among other things, that "[a]ny procedural deficiencies were inadvertent and not made for purposes of delay or abuse of the discovery process." See Opposition, p. 1 *et seq.* He also contends the claimed Monetary Sanctions are excessive. *Id.* at p. 2 *et seq.* He requests that any ordered Monetary Sanctions be paid in monthly installments. *Id.* at p. 4.

The Court notes that the Supplemental Declaration fails to attach supporting billing statements or records, as ordered by the Court. See March 3, 2026 Order, p. 2, ¶12.a. Some breakdown of the time and billing incurred is addressed in the Supplemental Declaration.

Moreover, as Plaintiff contends, the Court finds the requested amount to be excessive. The Court directed the submittal of a supplemental declaration focused on a showing of any reasonable expenses, including attorney's fees or other costs, incurred as a result of the discovery misconduct. 6.8 hours to generate the further papers, including briefing was unnecessary and excessive. See Supplemental Declaration, ¶11.

Disposition

The Court further finds and orders as follows:

1. Plaintiff shall pay Monetary Sanctions to the City in the amount of **\$1,000.00**.
2. The Court finds that such Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by the City as a result of the conduct by Plaintiff. In fixing said amount, the Court has considered all evidence in the record before the Court on the motion, including the supporting declarations of the moving party and the Opposition. The Court, in its discretion, mitigated the amount of the sanctions for the reasons discussed above and in light of other further sanctions recently imposed by the Court. See Order dated May 5, 2026. The Court finds that the Monetary Sanctions imposed, as mitigated, are just and reasonable.
3. The Monetary Sanctions shall be paid by Plaintiff through regular monthly installments of \$250.00 beginning June 1, 2026, until paid in full.
4. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: GROVE, JUDITH, RN
TENTATIVE RULING:

Before the Court is a demurrer to the first amended complaint by defendants San Ramon Regional Medical Center, Judith Grove, RN and Rene Ochoa, RN in which defendant Dr. Joseph Toscano has filed a joinder. For the reasons set forth, and on the grounds and subject to the terms and provisions of this ruling, the demurrer is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

Plaintiff Linda H. Williams, in pro per, filed her complaint initiating this action on August 7, 2025. The complaint names as defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation,

Dr. Narendra K. Malani, Dr. Joseph Toscano, Judith Grove, RN, and Rene Ochoa, RN. The Court form complaint states a single, unnumbered cause of action for "general negligence" in which she makes the supporting factual allegation that on April 20, 2024, the defendants negligently administered medication to her to which she contends she was allergic and which were listed in a "Do Not Give" instruction. She alleges she suffered "life-threatening anaphylaxis, requiring intubation and mechanical ventilation," among other things. (Compl. General Negl. C/A.) She then attached to the form complaint and the general negligence cause of action a document titled "Exh. A (COA) Detailed Statement of Facts," in which she includes a section called "factual allegations" and then a first cause of action for medical malpractice, a second cause of action for negligence, a third cause of action for negligent infliction of emotional distress, and a fourth cause of action for battery (medical).

On October 15, 2025, Plaintiff filed a two-page document titled First Amended Complaint ("FAC"). The FAC contains no causes of action or substantive allegations but instead refers to "(Correction to Prayer for Relief – Per CRC 2.111) and includes "VIII. Prayer for Relief" with a prayer for judgment against defendants with various forms of relief.

San Ramon Regional Medical Center, Judith Grove, RN, and Rene Ochoa, RN (the "SRRMC Parties") filed a demurrer to the FAC.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318].) In determining whether the complaint states a claim for relief, the Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss v. County of Alameda, supra*, 242 Cal.App.4th at 123.)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on the statute of limitations, however, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [demurrer based on statute of limitations does not lie when the action may be, but is not necessarily, barred].)

Demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 39.)

Procedural Issue – Lack of Opposition to Demurrer to FAC

The SRRMC Parties' reply raises the lack of opposition to their demurrer to the FAC. Plaintiff did, however, file a written opposition to their demurrer to the original complaint on November 10, 2025 that was apparently served on the SRRMC Parties and was accepted by the Court for filing, even

though the SRRMC Parties' demurrer to the original complaint was rejected because the FAC was on file. The SRRMC Parties are urging the Court to consider the original complaint in ruling on this demurrer, as set forth below. The Court will therefore also consider Plaintiff's previously file opposition to the SRRMC Parties' demurrer to the complaint.

Analysis

A. FAC Mistitled/Misfiled and Intended as "Correction" of Prayer to Original Complaint

The document Plaintiff filed in the Court's Odyssey system is titled "First Amended Complaint" and was filed as such. The FAC does not contain any causes of action or substantive factual allegations; the text consists only of a "correction" to the prayer for relief in the original complaint. The FAC refers to "CRC 2.111," but that Rule only addresses the proper format of papers filed with the Court. (Cal. R. Ct., Rule 2.111 ["The first page of each paper must be in the following form," followed by a list of 11 subparts describing the contents and line spacing for the first page of a pleading].)

The SRRMC Parties assert demurrers to the FAC as a whole for uncertainty and failure to allege facts sufficient to state a cause of action. As discussed further below, the SRRMC Parties recognize that the filing of an amended complaint means that the amended complaint supersedes the prior version, and the prior version is of no further force and effect. (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215 ["An 'amended' complaint supersedes all prior complaints. . . . The original ceases to 'perform any function as a pleading.' " [Citation omitted.],] quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884]; *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 ["Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint. [Citation.],] and "The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment."].)

Nevertheless, the SRRMC Parties urge the Court under the circumstances to consider the FAC to be a misnamed pleading, intended only as a correction to the prayer in the original complaint. They ask the Court to reach the merits of the claims alleged in the original complaint and the SRRMC Parties' demurrer to those claims as alleged therein.

Despite the title, the Court agrees that the pleading Plaintiff filed on October 15, 2025 appears to have been intended only to be a correction or modification of the prayer for relief in the original complaint and not to replace the complaint. Under the circumstances, the Court will disregard the title of the October 15, 2025 pleading, except for purposes of leave to amend as granted below, and will reach the merits of the demurrer to the complaint filed August 7, 2025 with the corrected/modified prayer filed October 15, 2025.

Plaintiff is cautioned that litigants who choose to represent themselves are required to comply with the civil laws, rules and procedures just as represented parties. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.)

B. Demurrer to Complaint in Its Entirety as Uncertain

The complaint includes a judicial form complaint with a single, unnumbered form cause of action for "general negligence," and then attaches typewritten text with "factual allegations" followed by four "causes of action," including one labeled "second cause of action – negligence." The Court agrees that

the complaint is ambiguous and uncertain to the extent warranting the Court sustaining the demurrer to the complaint in its entirety on that ground. (Code Civ. Proc. § 430.10(f).) Given there is a "general negligence" cause of action alleged in the form portion of the complaint, it is not clear if the complaint really asserts five causes of action, rather than the four identified in the text of the attachment, or whether the "second cause of action" in the typed attachment is intended to expand or replace the "general negligence" cause of action in the form portion of the complaint.

Further, the complaint does not comply with the requirement of Rule 2.112 of the California Rules of Court. That rule requires "each separately stated cause of action" to state "its number," such as first, second, or third cause of action. (Cal. R. Ct., Rule 2.112 subpart 1.) The form "general negligence" cause of action is unnumbered, and the numbered causes of action begin in the text of the attachment, notwithstanding the separate "general negligence" cause of action in the initial portion of the complaint. Rule 2.112 also requires the complaining party to identify the "party or parties to whom it is directed (e.g., 'against defendant Smith')." (Cal. R. Ct., Rule 2.112 subpart 4.) Given the number of different defendants, Plaintiff needs to comply with this part of the rule as well.

The demurrer to the complaint in its entirety for uncertainty is **SUSTAINED**.

C. Demurrer to Complaint for Untimeliness Under the Statute of Limitations

Code of Civil Procedure states in pertinent part, "In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." The statute defines professional negligence generally as "a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death." (Code Civ. Proc. § 340.5 subpart (2).) There is no dispute among the parties that this statute applies to Plaintiff's claims against the defendants.

Code of Civil Procedure section 364 requires a party to serve a Notice of Intent before commencing an action for medical negligence. (Code Civ. Proc. § 364(a) ["No action based upon the health care provider's professional negligence may be commenced unless the defendant has been given at least 90 days' prior notice of the intention to commence the action."].) The statute also provides, "If the notice is served within 90 days of the expiration of the applicable statute of limitations, the time for the commencement of the action shall be extended 90 days from the service of the notice." (Code Civ. Proc. § 364(d).)

Plaintiff alleges she was hospitalized on April 20, 2024 and was given improper medications which caused her to suffer various injuries, including having to be ventilated. (Compl. Gen. Negl. C/A para. GN-1; Exh. A (COA) to Compl. Factual Allegations ¶¶ 12-18.) She alleges she served "Notices of Intent" on April 19, 2025, "one day before the statute of limitations expired." (Compl. Exh. A (COA) Factual Allegations ¶ 20.) She filed her complaint on August 7, 2025, approximately 110 days after she alleges she served the Notices of Intent, and more than fifteen months after her hospitalization on April 20, 2024.

Plaintiff contends that the complaint on its face does not show that it is barred by the statute of limitations. Reasonably interpreting the allegations, the complaint asserts her injury occurred on April 20, 2024 when she was given improper medications, the only specific date alleged multiple times in

her complaint. (Compl. Gen. Negl. C/A GN-1 and Exh. A (COA) Factual Allegations ¶ 12.) Plaintiff alleges that the statute of limitations was to expire on April 20, 2025, as she alleges she served the Notices of Intent one day prior to its expiration. (Compl. Exh. A (COA) Factual Allegations ¶ 20.) On its face, the complaint was filed more than one year after the statute of limitations expired, based on Plaintiff's own allegation, and more than 90 days after the Notices of Intent were served under Code of Civil Procedure section 364.

Plaintiff contends that her claims are timely based on the discovery rule, citing *Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1109.) The general rule is that the statute of limitations begins to accrue when all elements of the claim exist. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806.) The delayed discovery rule postpones the accrual date of a cause of action "until the plaintiff is aware of her injury and its negligent cause." (*Jolly, supra*, 44 Cal.3d at 1109 [emphasis added].) (*See also Fox, supra*, 25 Cal.4th at 803 ["[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause."].) To plead the delayed discovery rule, " '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation omitted.]" (*Fox, supra*, 35 Cal.4th at 808 [emphasis added].)

Plaintiff asserts facts in her opposition that she contends show she did not discover, and could not have discovered, the misadministration of medication until four or five months after her hospitalization. (Opp. to SRRMC Parties' Dem. p. 3.) Plaintiff has not pled any facts in her complaint to support application of the delayed discovery rule, including those asserted in her opposition. On the face of the complaint, her complaint was untimely for the reasons stated above.

The Court cannot consider evidence, such as the Williams Declaration and other attachments to her opposition, in ruling on a demurrer, only matters subject to judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The Court instead interprets Plaintiff's opposition and declaration as providing facts that she contends she can allege in an amended complaint to demonstrate her action is not barred by the statute of limitations. The arguments do not make the allegations of the complaint as pled sufficient to state a cause of action that is not barred by the statute of limitations.

The demurrer to the complaint on the grounds of the statute of limitations is **SUSTAINED**.

Conclusion and Ruling

The SRRMC Parties' general demurrer to the complaint in its entirety based on the statute of limitations, and special demurrer to the complaint as a whole for uncertainty as described above, in which defendant Dr. Toscano has joined, are **SUSTAINED, WITH LEAVE TO AMEND**. It is not clear to the Court whether Plaintiff will be able to amend to avoid the statute of limitations under the circumstances, but the Court will allow Plaintiff a chance to try to do so. Though the Court does not reach the other grounds for demurrer in light of this ruling, leave to amend includes leave to address any other matters subject to the challenges raised in the demurrer if Plaintiff chooses to do so in addition to alleging additional facts to address the statute of limitations.

For purposes of filing an amended pleading, any amended pleading must be titled as the **Second**

Amended Complaint to avoid confusion in the Court's register of action in light of the "first amended complaint" on file. Plaintiff is also advised the Court expects compliance with Code of Civil Procedure section 471.5 which requires service of an amended complaint "upon the defendants affected thereby." (Code Civ. Proc. § 471.5(a).) Based on this ruling, and concurrent rulings sustaining demurrers by the other defendants, any amended complaint must be served on all defendants.

11. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: TOSCANO, DR. JOSEPH
TENTATIVE RULING:

Before the Court is a demurrer to the first amended complaint by defendant Dr. Joseph Toscano. For the reasons set forth, and on the grounds and subject to the terms and provisions of this ruling, the demurrer is **sustained, with leave to amend**.

Background

The background of the case is set forth in the Court's tentative ruling for Line 10 for the demurrer to the first amended complaint ("FAC") in which Dr. Toscano joined.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318].) In determining whether the complaint states a claim for relief, the Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss v. County of Alameda, supra*, 242 Cal.App.4th at 123.)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on the statute of limitations, however, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [demurrer based on statute of limitations does not lie when the action may be, but is not necessarily, barred].)

Demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 39.)

Procedural Note on Plaintiff's Opposition

Plaintiff's opposition fails to comply with Rule 2.109 of the California Rules of Court which requires all

pleadings filed with the Court to include page numbering. The Court expects compliance with this rule, and all applicable Court rules and statutory procedures in future filings.

Analysis

The only grounds stated in Dr. Toscano's notice of demurrer are that the action is barred by the statute of limitations of Code of Civil Procedure section 340.5. In his supporting memorandum, Dr. Toscano also raises the deficiencies in the document titled "First Amended Complaint" to which Plaintiff has responded in her opposition. The Court considers both arguments.

A. FAC Mistitled/Misfiled and Intended as "Correction" of Prayer to Original Complaint

The document Plaintiff filed in the Court's Odyssey system is titled "First Amended Complaint" and was filed as such. The FAC does not contain any causes of action or substantive factual allegations; the text consists only of a "correction" to the prayer for relief in the original complaint. The FAC refers to "CRC 2.111," but that Rule only addresses the proper format of papers filed with the Court. (Cal. R. Ct., Rule 2.111 ["The first page of each paper must be in the following form," followed by a list of 11 subparts describing the contents and line spacing for the first page of a pleading].)

Dr. Toscano points out that the FAC fails because it alleges no facts or causes of action, only the "correction" to the prayer. Dr. Toscano, like other defendants, has raised arguments supporting the demurrer directed to the complaint. The filing of an amended complaint means that the amended complaint supersedes the prior version, and the prior version is of no further force and effect. (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215 ["An 'amended' complaint supersedes all prior complaints. . . . The original ceases to 'perform any function as a pleading.'" [Citation omitted].], quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884]; *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 ["Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint. [Citation.], and "The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment."].)

Nevertheless, Dr. Toscano and other defendants urge the Court under the circumstances to consider the FAC to be a misnamed pleading, intended only as a correction to the prayer in the original complaint. They ask the Court to reach the original complaint and the demurrers to those claims as alleged therein. The Court notes that Dr. Toscano filed a demurrer to the complaint on October 22, 2025, which was taken off-calendar after Plaintiff's October 15, 2025 filing.

Despite the title, the Court agrees that the pleading Plaintiff filed on October 15, 2025 appears to have been intended only to be a correction or modification of the prayer for relief in the original complaint and not to replace the complaint. Under the circumstances, the Court will disregard the title of the October 15, 2025 pleading, except for purposes of leave to amend as granted below, and will reach the merits of the complaint filed August 7, 2025 with the corrected/modified prayer filed October 15, 2025.

Plaintiff is cautioned that litigants who choose to represent themselves are required to comply with the civil laws, rules and procedures just as represented parties. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.)

B. Demurrer to Complaint for Untimeliness Under the Statute of Limitations

Code of Civil Procedure states in pertinent part, "In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." The statute defines professional negligence generally as "a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death." (Code Civ. Proc. § 340.5 subpart (2).) There is no dispute among the parties that this statute applies to Plaintiff's claims against the defendants.

Code of Civil Procedure section 364 requires a party to serve a Notice of Intent before commencing an action for medical negligence. (Code Civ. Proc. § 364(a) ["No action based upon the health care provider's professional negligence may be commenced unless the defendant has been given at least 90 days' prior notice of the intention to commence the action."].) The statute also provides, "If the notice is served within 90 days of the expiration of the applicable statute of limitations, the time for the commencement of the action shall be extended 90 days from the service of the notice." (Code Civ. Proc. § 364(d).)

Plaintiff alleges she was hospitalized on April 20, 2024 and was given improper medications which caused her to suffer various injuries, including having to be ventilated. (Compl. Gen. Negl. C/A para. GN-1; Exh. A (COA) to Compl. "Factual Allegations" ¶¶ 12-18.) She alleges she served "Notices of Intent" on April 19, 2025, "one day before the statute of limitations expired." (Compl. Exh. A (COA) Factual Allegations ¶ 20.) She filed her complaint on August 7, 2025, approximately 110 days after the Notices of Intent are alleged to have been served, and more than fifteen months after her hospitalization on April 20, 2024.

Plaintiff contends that the complaint on its face does not show that it is barred by the statute of limitations. Reasonably interpreting the allegations, the complaint asserts her injury occurred on April 20, 2024 when she was given improper medications, the only specific date alleged multiple times in her complaint. (Compl. Gen. Negl. C/A GN-1 and Exh. A (COA) Factual Allegations ¶ 12.) Plaintiff alleges that the statute of limitations was to expire on April 20, 2025, as she alleges she served the Notices of Intent one day prior to its expiration. (Compl. Exh. A (COA) Factual Allegations ¶ 20.)

Plaintiff asserts that she pled "tolling" of the statute of limitations under Code of Civil Procedure section 364 based on her allegation that she served Notices of Intent within the statute of limitations on April 19, 2025. (Opp. Section III [no page numbers].) Plaintiff, however, does not address that under Code of Civil Procedure section 364(d), service of the Notices of Intent only tolls the date for filing the complaint by 90 days. August 7, 2025 is more than 90 days after April 19, 2025 when she alleges she served the Notices of Intent. (Compl. Exh. A (COA) Factual Allegations ¶ 20.) On its face, the complaint was filed more than one year after the statute of limitations expired, based on Plaintiff's own allegation, and more than 90 days after she served the Notices of Intent under Code of Civil Procedure section 364.

Plaintiff though also asserts that her claims are timely based on the discovery rule, citing *Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1109.) (Opp. Section III.) The general rule is that the statute of limitations begins to accrue when all elements of the claim exist. (*Fox v. Ethicon Endo-Surgery, Inc.*

(2005) 35 Cal.4th 797, 806.) The delayed discovery rule postpones the accrual date of a cause of action "until the plaintiff is aware of her injury and its negligent cause." (*Jolly, supra*, 44 Cal.3d at 1109 [emphasis added].) (*See also Fox, supra*, 25 Cal.4th at 803 ["[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause."].)

In the opposition, Plaintiff generally asserts that the discovery rule extends the statute of limitations and that whether the discovery rule applies is a "fact-intensive inquiry." (Opp. Section III.) That does not excuse Plaintiff from actually alleging such facts in her operative complaint to support that the delayed discovery rule may apply to extend the statute of limitations when on the face of the complaint, the complaint shows it was untimely. To the contrary, California law requires such facts to be alleged in the complaint. To plead the delayed discovery rule, " '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation omitted.]" (*Fox, supra*, 35 Cal.4th at 808 [emphasis added].)

Plaintiff has not pled any facts in her complaint to support application of the delayed discovery rule to extend the statute of limitations, including those asserted in her opposition. On the face of the complaint, her complaint was untimely.

The demurrer to the complaint on the grounds of the statute of limitations is **SUSTAINED**.

Conclusion and Ruling

Dr. Toscano's general demurrer to the complaint in its entirety based on the statute of limitations is **SUSTAINED, WITH LEAVE TO AMEND**. It is not clear to the Court whether Plaintiff will be able to amend to avoid the statute of limitations under the circumstances, but the Court will allow Plaintiff a chance to try to do so. Though the Court does not reach the other grounds for demurrer in light of this ruling, leave to amend includes leave to address any other matters subject to the challenges raised in the demurrer if Plaintiff chooses to do so in addition to alleging additional facts to address the statute of limitations.

For purposes of filing an amended pleading, any amended pleading must be titled as the **Second Amended Complaint** to avoid confusion in the Court's register of action in light of the "first amended complaint" on file. The Court also expects compliance with Code of Civil Procedure section 471.5 which requires service of an amended complaint "upon the defendants affected thereby." (Code Civ. Proc. § 471.5(a).) Based on this ruling, and concurrent rulings sustaining demurrers by the other defendants, any amended complaint must be served on all defendants.

12. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: GROVE, JUDITH, RN
TENTATIVE RULING:

Before the Court is a motion to strike portions of the prayer in the first amended complaint by defendants San Ramon Regional Medical Center, Judith Grove, RN and Rene Ochoa, RN ("Moving Parties"). Based on the Court's concurrent ruling sustaining the Moving Parties' demurrer, the motion to strike is **DENIED AS MOOT**.

13. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING IN RE: DR. JOSEPH TOSCANO'S JOINDER IN DEMURRER TO FIRST AMENDED COMPLAINT
BY SAN RAMON REGIONAL MEDICAL CENTER
FILED BY: TOSCANO, DR. JOSEPH
TENTATIVE RULING:

See Line 10 above.

14. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MALANI, DR. NARENDRA K
TENTATIVE RULING:

Before the Court is a demurrer to the first amended complaint by defendant Dr. Narendra K. Malani. For the reasons set forth, For the reasons set forth, and on the grounds and subject to the terms and provisions of this ruling, the demurrer is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

Plaintiff Linda H. Williams, in pro per, filed her complaint initiating this action on August 7, 2025. The complaint names as defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation, Dr. Narendra K. Malani, Dr. Joseph Toscano, Judith Grove, RN, and Rene Ochoa, RN. The Court form complaint states a single, unnumbered cause of action for "general negligence" in which she makes the supporting factual allegation that on April 20, 2024, the defendants negligently administered medication to her to which she contends she was allergic and which were listed in a "Do Not Give" instruction. She alleges she suffered "life-threatening anaphylaxis, requiring intubation and mechanical ventilation," among other things. (Compl. General Negl. C/A.) She then attached to the form complaint and the general negligence cause of action a document titled "Exh. A (COA) Detailed Statement of Facts," in which she includes a section called "factual allegations" and then a first cause of action for medical malpractice, a second cause of action for negligence, a third cause of action for

negligent infliction of emotional distress, and a fourth cause of action for battery (medical).

On October 15, 2025, Plaintiff filed a two-page document titled First Amended Complaint ("FAC"). The FAC contains no causes of action or substantive allegations but instead refers to "(Correction to Prayer for Relief – Per CRC 2.111) and includes "VIII. Prayer for Relief" with a prayer for judgment against defendants with various forms of relief.

Dr. Malani has filed a demurrer to the FAC.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318].) In determining whether the complaint states a claim for relief, the Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss v. County of Alameda, supra*, 242 Cal.App.4th at 123.)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on the statute of limitations, however, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [demurrer based on statute of limitations does not lie when the action may be, but is not necessarily, barred].)

Demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 39.)

Procedural Issue – Lack of Opposition to Demurrer to FAC

Plaintiff did not file an opposition to Dr. Malani's demurrer to the FAC, only Dr. Malani's motion to strike portions of the FAC set for hearing concurrently with the demurrer. Plaintiff did, however, file an opposition to Dr. Malani's demurrer to the original complaint on November 10, 2025.

Dr. Malani urges the Court to consider the original complaint in ruling on this demurrer. For the reasons set forth below, the Court will reach the merits of the original complaint, treating the document labeled "FAC" as a correction, and the Court will therefore also consider Plaintiff's previously file opposition to the demurrer to the complaint.

Analysis

A. FAC Mistitled/Misfiled and Intended as "Correction" of Prayer to Original Complaint

The document Plaintiff filed in the Court's Odyssey system is titled "First Amended Complaint" and was filed as such. The FAC does not contain any causes of action or substantive factual allegations; the text consists only of a "correction" to the prayer for relief in the original complaint. The FAC refers

to "CRC 2.111," but that Rule only addresses the proper format of papers filed with the Court. (Cal. R. Ct., Rule 2.111 ["The first page of each paper must be in the following form," followed by a list of 11 subparts describing the contents and line spacing for the first page of a pleading].)

Dr. Malani recognizes that the filing of an amended complaint means that the amended complaint supersedes the prior version, and the prior version is of no further force and effect. (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215 ["An 'amended' complaint supersedes all prior complaints. . . . The original ceases to 'perform any function as a pleading.' " [Citation omitted.],] quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884]; *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 ["Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint. [Citation.],] and "The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment."].)

Nevertheless, Dr. Malani urges the Court under the circumstances to consider the FAC to be a misnamed pleading, intended only as a correction to the prayer in the original complaint. She asks the Court to reach the merits of the claims alleged in the original complaint and her demurrer to those claims as alleged therein.

Despite the title, the Court agrees that the pleading Plaintiff filed on October 15, 2025 appears to have been intended only to be a correction or modification of the prayer for relief in the original complaint and not to replace the complaint. Under the circumstances, the Court will disregard the title of the October 15, 2025 pleading, except for purposes of leave to amend as granted below, and will reach the merits of the demurrer to the complaint filed August 7, 2025 with the corrected/modified prayer filed October 15, 2025.

Plaintiff is cautioned that litigants who choose to represent themselves are required to comply with the civil laws, rules and procedures just as represented parties. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.)

B. Demurrer to Complaint for Untimeliness Under the Statute of Limitations

Code of Civil Procedure states in pertinent part, "In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." The statute defines professional negligence generally as "a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death." (Code Civ. Proc. § 340.5 subpart (2).) There is no dispute among the parties that this statute applies to Plaintiff's claims against the defendants.

Code of Civil Procedure section 364 requires a party to serve a Notice of Intent before commencing an action for medical negligence. (Code Civ. Proc. § 364(a) ["No action based upon the health care provider's professional negligence may be commenced unless the defendant has been given at least 90 days' prior notice of the intention to commence the action."].) The statute also provides, "If the notice is served within 90 days of the expiration of the applicable statute of limitations, the time for the commencement of the action shall be extended 90 days from the service of the notice." (Code

Civ. Proc. § 364(d).)

Plaintiff alleges she was hospitalized on April 20, 2024 and was given improper medications which caused her to suffer various injuries, including having to be ventilated. (Compl. Gen. Negl. C/A para. GN-1; Exh. A (COA) to Compl. "Factual Allegations" ¶¶ 12-18.) She alleges she served "Notices of Intent" on April 19, 2025, "one day before the statute of limitations expired." (Compl. Exh. A (COA) Factual Allegations ¶ 20.) She filed her complaint on August 7, 2025, approximately 110 days after the Notices of Intent are alleged to have been served, and more than fifteen months after her hospitalization on April 20, 2024.

Plaintiff contends that the complaint on its face does not show that it is barred by the statute of limitations. Reasonably interpreting the allegations, the complaint asserts her injury occurred on April 20, 2024 when she was given improper medications, the only specific date alleged multiple times in her complaint. (Compl. Gen. Negl. C/A GN-1 and Exh. A (COA) Factual Allegations ¶ 12.) Plaintiff alleges that the statute of limitations was to expire on April 20, 2025, as she alleges she served the Notices of Intent one day prior to its expiration. (Compl. Exh. A (COA) Factual Allegations ¶ 20.) On its face, the complaint was filed more than one year after the statute of limitations expired, based on Plaintiff's own allegation, and more than 90 days after the Notices of Intent were served under Code of Civil Procedure section 364.

Plaintiff contends that her claims are timely based on the discovery rule, citing *Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1109.) The general rule is that the statute of limitations begins to accrue when all elements of the claim exist. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806.) The delayed discovery rule postpones the accrual date of a cause of action "until the plaintiff is aware of her injury and its negligent cause." (*Jolly, supra*, 44 Cal.3d at 1109 [emphasis added].) (*See also Fox, supra*, 25 Cal.4th at 803 ["[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause."].) To plead the delayed discovery rule, " '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation omitted.]" (*Fox, supra*, 35 Cal.4th at 808 [emphasis added].)

In her earlier opposition to the Dr. Malani demurrer to the complaint, Plaintiff asserts facts that she contends show she did not discover, and could not have discovered, the misadministration of medication until four or five months after her hospitalization. (Opp. to Dr. Malani Dem. p. 3.) Plaintiff has not pled any facts in her complaint to support application of the delayed discovery rule to extend the statute of limitations, including those asserted in her opposition. On the face of the complaint, her complaint was untimely.

The Court cannot consider evidence, such as the Williams Declaration and other attachments to her opposition, in ruling on a demurrer, only matters subject to judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The Court interprets Plaintiff's opposition and the declaration as providing facts that she contends she can allege in an amended complaint to demonstrate her action is not barred by the statute of limitations. The arguments do not make the allegations of the complaint as pled sufficient to state a cause of action that is not barred by the

statute of limitations.

The demurrer to the complaint on the grounds of the statute of limitations is **SUSTAINED**.

Conclusion and Ruling

The general demurrer to the complaint based on the statute of limitations is **SUSTAINED, WITH LEAVE TO AMEND**. It is not clear to the Court whether Plaintiff will be able to amend to avoid the statute of limitations under the circumstances, but the Court will allow Plaintiff a chance to try to do so. Though the Court does not reach the other grounds for demurrer in light of this ruling, leave to amend includes leave to address any other matters subject to the challenges raised in the demurrer if Plaintiff chooses to do so in addition to alleging additional facts to address the statute of limitations.

For purposes of filing an amended pleading, any amended pleading must be titled as the **Second Amended Complaint** to avoid confusion in the Court's register of action in light of the "first amended complaint" on file. The Court also expects compliance with Code of Civil Procedure section 471.5 which requires service of an amended complaint "upon the defendants affected thereby." (Code Civ. Proc. § 471.5(a).) Based on this ruling, and concurrent rulings sustaining demurrers by the other defendants, any amended complaint must be served on all defendants.

15. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: MALANI, DR. NARENDRA K
TENTATIVE RULING:

Before the Court is a motion to strike portions of the prayer in the first amended complaint by defendant Dr. Narendra K. Malani. Based on the Court's concurrent ruling sustaining Dr. Malani's demurrer, the motion to strike is **DENIED AS MOOT**.

16. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: TENET HEALTHCARE CORPORATION
TENTATIVE RULING:

Before the Court is a demurrer to the first amended complaint by defendant Tenet Healthcare Corporation. For the reasons set forth, and on the grounds and subject to the terms and provisions of this ruling, the demurrer is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

Plaintiff Linda H. Williams, in pro per, filed her complaint initiating this action on August 7, 2025. The complaint names as defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation, Dr. Narendra K. Malani, Dr. Joseph Toscano, Judith Grove, RN, and Rene Ochoa, RN. The Court form complaint states a single, unnumbered cause of action for "general negligence" in which she makes

the supporting factual allegation that on April 20, 2024, the defendants negligently administered medication to her to which she contends she was allergic and which were listed in a "Do Not Give" instruction. She alleges she suffered "life-threatening anaphylaxis, requiring intubation and mechanical ventilation," among other things. (Compl. General Negl. C/A.) She then attached to the form complaint and the general negligence cause of action a document titled "Exh. A (COA) Detailed Statement of Facts," in which she includes a section called "factual allegations" and then a first cause of action for medical malpractice, a second cause of action for negligence, a third cause of action for negligent infliction of emotional distress, and a fourth cause of action for battery (medical).

On October 15, 2025, Plaintiff filed a two-page document titled First Amended Complaint ("FAC"). The FAC contains no causes of action or substantive allegations but instead refers to "(Correction to Prayer for Relief – Per CRC 2.111) and includes "VIII. Prayer for Relief" with a prayer for judgment against defendants with various forms of relief.

Tenet Healthcare Corporation has filed a demurrer to the FAC.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318].) In determining whether the complaint states a claim for relief, the Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss v. County of Alameda, supra*, 242 Cal.App.4th at 123.)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on the statute of limitations, however, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [demurrer based on statute of limitations does not lie when the action may be, but is not necessarily, barred].)

Demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 39.)

Procedural Note on Plaintiff's Opposition

Plaintiff's opposition fails to comply with Rule 2.109 of the California Rules of Court which requires all pleadings filed with the Court to include page numbering. The Court expects compliance with this rule, and all applicable Court rules and statutory procedures in future filings.

Analysis

A. FAC Mistitled/Misfiled and Intended as "Correction" of Prayer to Original Complaint

The document Plaintiff filed in the Court's Odyssey system is titled "First Amended Complaint" and was filed as such. The FAC does not contain any causes of action or substantive factual allegations; the text consists only of a "correction" to the prayer for relief in the original complaint. The FAC refers to "CRC 2.111," but that Rule only addresses the proper format of papers filed with the Court. (Cal. R. Ct., Rule 2.111 ["The first page of each paper must be in the following form," followed by a list of 11 subparts describing the contents and line spacing for the first page of a pleading].)

Tenet asserts demurrers to the FAC as a whole for uncertainty and failure to allege facts sufficient to state a cause of action. As discussed further below, Tenet recognizes that the filing of an amended complaint means that the amended complaint supersedes the prior version, and the prior version is of no further force and effect. (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215 ["An 'amended' complaint supersedes all prior complaints. . . . The original ceases to 'perform any function as a pleading.' " [Citation omitted.], quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884]; *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 ["Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint. [Citation.], and "The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment."].)

Nevertheless, Tenet urges the Court under the circumstances to consider the FAC to be a misnamed pleading, intended only as a correction to the prayer in the original complaint. Tenet asks the Court to reach the merits of the claims alleged in the original complaint and Tenet's demurrer to those claims as alleged therein.

Despite the title, the Court agrees that the pleading Plaintiff filed on October 15, 2025 appears to have been intended only to be a correction or modification of the prayer for relief in the original complaint and not to replace the complaint. Under the circumstances, the Court will disregard the title of the October 15, 2025 pleading, except for purposes of leave to amend as granted below, and will reach the merits of the demurrer to the complaint filed August 7, 2025 with the corrected/modified prayer filed October 15, 2025.

Plaintiff is cautioned that litigants who choose to represent themselves are required to comply with the civil laws, rules and procedures just as represented parties. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.)

B. Demurrer to Complaint in Its Entirety as Uncertain

The complaint includes a form complaint with a single, unnumbered form cause of action for "general negligence," and then attaches typewritten text with "factual allegations" followed by four "causes of action," including one labeled "second cause of action – negligence." The Court agrees that the complaint as pleaded is ambiguous and uncertain to the extent warranting the Court sustaining the demurrer to the complaint in its entirety on that ground. (Code Civ. Proc. § 430.10(f).) Given there is a "general negligence" cause of action alleged in the form portion of the complaint, it is not clear if the complaint really asserts five causes of action, rather than the four identified in the text of the

attachment, or whether the "second cause of action" in the typed attachment is intended to expand or replace the "general negligence" cause of action in the form portion of the complaint.

Further, the complaint does not comply with the requirement of Rule 2.112 of the California Rules of Court. That rule requires "each separately stated cause of action" to state "its number," such as first, second, or third cause of action. (Cal. R. Ct., Rule 2.112 subpart 1.) The form "general negligence" cause of action is unnumbered, and the numbered causes of action begin in the text of the attachment, notwithstanding that separate "general negligence" cause of action. Rule 2.112 also requires the complaining party to identify the "party or parties to whom it is directed (e.g., 'against defendant Smith')." (Cal. R. Ct., Rule 2.112 subpart 4.) Given the number of different defendants, Plaintiff needs to comply with this part of the rule as well.

The demurrer to the complaint in its entirety for uncertainty is **SUSTAINED**.

C. Demurrer to Complaint for Untimeliness Under the Statute of Limitations

Code of Civil Procedure states in pertinent part, "In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." The statute defines professional negligence generally as "a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death." (Code Civ. Proc. § 340.5 subpart (2).) There is no dispute among the parties that this statute applies to Plaintiff's claims against the defendants.

Code of Civil Procedure section 364 requires a party to serve a Notice of Intent before commencing an action for medical negligence. (Code Civ. Proc. § 364(a) ["No action based upon the health care provider's professional negligence may be commenced unless the defendant has been given at least 90 days' prior notice of the intention to commence the action."].) The statute also provides, "If the notice is served within 90 days of the expiration of the applicable statute of limitations, the time for the commencement of the action shall be extended 90 days from the service of the notice." (Code Civ. Proc. § 364(d).)

Plaintiff alleges she was hospitalized on April 20, 2024 and was given improper medications which caused her to suffer various injuries, including having to be ventilated. (Compl. Gen. Negl. C/A para. GN-1; Exh. A (COA) to Compl. "Factual Allegations" ¶¶ 12-18.) She alleges she served "Notices of Intent" on April 19, 2025, "one day before the statute of limitations expired." (Compl. Exh. A (COA) Factual Allegations ¶ 20.) She filed her complaint on August 7, 2025, approximately 110 days after the Notices of Intent are alleged to have been served, and more than fifteen months after her hospitalization on April 20, 2024.

Plaintiff contends that the complaint on its face does not show that it is barred by the statute of limitations. Reasonably interpreting the allegations, the complaint asserts her injury occurred on April 20, 2024 when she was given improper medications, the only specific date alleged multiple times in her complaint. (Compl. Gen. Negl. C/A GN-1 and Exh. A (COA) Factual Allegations ¶ 12.) Plaintiff alleges that the statute of limitations was to expire on April 20, 2025, as she alleges she served the Notices of Intent one day prior to its expiration. (Compl. Exh. A (COA) Factual Allegations ¶ 20.) On its face, the complaint was filed more than one year after the statute of limitations expired, based on

Plaintiff's own allegation, and more than 90 days after the Notices of Intent were served under Code of Civil Procedure section 364.

Plaintiff contends that her claims are timely based on the discovery rule, citing *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 810. The general rule is that the statute of limitations begins to accrue when all elements of the claim exist. (*Fox, supra*, 35 Cal.4th at 806.) The delayed discovery rule postpones the accrual date of a cause of action; "under the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause." (*Id.* at 803.)

She asserts she pled "tolling" of the statute under Code of Civil Procedure section 364. (Opp. Section III.) Plaintiff, however, does not address that under Code of Civil Procedure section 364(d), service of the Notices of Intent only tolls the date for filing the complaint by 90 days. August 7, 2025 is more than 90 days after April 19, 2025 when she alleges she served the Notices of Intent. (Compl. Exh. A (COA) Factual Allegations ¶ 20.) On its face, the complaint was filed more than one year after the statute of limitations expired, based on Plaintiff's own allegation, and more than 90 days after she served the Notices of Intent under Code of Civil Procedure section 364.

In the opposition, Plaintiff also generally asserts that the delayed discovery rule extends the statute of limitations and requires resolution of disputed facts, and that for the Court to "accept defense characterizations of service and tolling" is contrary to the demurrer standard. (Opp. Section III.) To the contrary, for the reasons stated above, the Court has accepted as true Plaintiff's own allegation that she served Notices of Intent on April 19, 2025, one day before the expiration of the statute of limitations, and the complaint on its face shows it was filed on August 7, 2025, more than 90 days later. (Code Civ. Proc. § 364(d).)

Plaintiff's argument that she is relying on the delayed discovery rule to make her complaint timely does not excuse her from actually alleging facts in her operative complaint to support that the delayed discovery rule may apply to extend the statute of limitations when the face of the complaint shows it was untimely. To the contrary, California law, specifically the *Fox* decision cited by Plaintiff, mandates such facts to be alleged in the complaint. To plead the delayed discovery rule, "[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence." [Citation omitted]." (*Fox, supra*, 35 Cal.4th at 808 [emphasis added].)

Plaintiff has not pled any facts in her complaint to support application of the delayed discovery rule to extend the statute of limitations. On the face of the complaint, her complaint was untimely for the reasons stated above.

The demurrer to the complaint on the grounds of the statute of limitations is **SUSTAINED**.

Conclusion and Ruling

Tenet's general demurrer to the complaint in its entirety based on the statute of limitations, and special demurrer to the complaint as a whole for uncertainty as described above, are **SUSTAINED, WITH LEAVE TO AMEND**. It is not clear to the Court whether Plaintiff will be able to amend to avoid the statute of limitations under the circumstances, but the Court will allow Plaintiff a chance to try to

do so. For purposes of filing an amended pleading, Though the Court does not reach the other grounds for demurrer in light of this ruling, leave to amend includes leave to address any other matters subject to the challenges raised in the demurrer if Plaintiff chooses to do so in addition to alleging additional facts to address the statute of limitations.

For purposes of filing an amended pleading, any amended pleading must be titled as the **Second Amended Complaint** to avoid confusion in the Court's register of action in light of the "first amended complaint" on file. The Court also expects compliance with Code of Civil Procedure section 471.5 which requires service of an amended complaint "upon the defendants affected thereby." (Code Civ. Proc. § 471.5(a).) Based on this ruling, and concurrent rulings sustaining demurrers by the other defendants, any amended complaint must be served on all defendants.

17. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
***HEARING ON MOTION IN RE: STRIKE PLTFS 1ST AMENDED COMPLAINT**
FILED BY: TENET HEALTHCARE CORPORATION
TENTATIVE RULING:

Before the Court is a motion to strike portions of the prayer in the first amended complaint by defendant Tenet Healthcare Corporation. Based on the Court's concurrent ruling sustaining Dr. Malani's demurrer, the motion to strike is **DENIED AS MOOT**.

18. 9:00 AM CASE NUMBER: C25-03269
CASE NAME: SAMUEL CHEN VS. ORACLE AMERICA, INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ORACLE AMERICA, INC.
TENTATIVE RULING:

Defendant Oracle America, Inc. ("Oracle") filed a demurrer to plaintiff's Complaint on December 18, 2025 (the "Demurrer"). The Demurrer was set for hearing on May 11, 2026.

Background

Oracle's Demurrer demurs to the sole cause of action for Breach of Contract pled in the Complaint (the "Complaint") filed by plaintiff Samuel Chen ("Mr. Chen") on November 6, 2025. The Breach of Contract cause of action alleges that "[t]he Plaintiff entered into a contract with the Defendant on May 15, 2025, that required the Defendant to deliver a payment processing application for his small business by September 1, 2025" and, thereafter, breached that alleged contract. See Complaint, Attachment.

Oracle's Demurrer contends that this cause of action fail to state facts sufficient to constitute a cause of action against Oracle "because there is no contractual privity between Plaintiff and Oracle."

The motion is unopposed. Indeed, at the recent Case Management Conference the Court granted leave to amend, as Plaintiff indicated his intention to amend the operative following discussions with

the opposing party. See Order filed March 25, 2026. However, it does not appear that the operative Complaint has been amended.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

As noted, the Demurrer is unopposed. From the attachments to the Complaint, as noted by the moving party, the subject agreement references "KoolGyrl Products." The attachment "Estimate" which appears to include the relevant "Agreement" language lists the "Customer" name as KoolGyrl Products:

Customer Name & Bill To Address
KoolGyrl Products
2743 East Ct
Richmond CA 94806
United States

However, the signature block reflects a signature by "Sam Chen," without any clarifying information as to his capacity vis-à-vis KoolGyrl Products:

I AGREE TO THE FEES AND TERMS OF THIS ESTIMATE:

Sam Chen

Print Name

Signed by:

Sam Chen

Signature

36C15CAFFC3440E...

July 7, 2025 | 11:42 PDT

Date

Upon execution, this document is a binding order for the products and services set forth herein.

Given the "I AGREE..." language, the plain signature of Mr. Chen agreeing to the contract terms and lack of allegations regarding the nature of KoolGyrl Products and Mr. Chen's relationship to it, the Court cannot conclude **from the face of the pleading** that the allegations are insufficient to state a cause of action for breach of contract.

For example, the allegations could be construed to plead that Mr. Chen entered into the subject agreement for a product and/or service as a sole proprietor with a DBA of KoolGyrl Products, thereby stating a cause of action for breach of contract.

If Mr. Chen concedes that KoolGyrl Products is a business entity such as a corporation or LLC that entered into the subject agreement, then he can certainly seek to voluntarily amend the Complaint.

Otherwise, Oracle can make a dispositive motion in due course if discovery reveals that KoolGyrl Products is a business entity that entered into the subject agreement.

Disposition

The Court finds and orders as follows:

1. The Demurrer is OVERRULED.
2. Oracle's responsive pleading shall be filed and served within **ten (10) days** of the date of this order. See Rule 3.1320(j) of the California Rules of Court (CRC).
3. Should Mr. Chen voluntarily elect to amend the Complaint, the parties may confer on a date for such amendment and the timing of Oracle's responsive pleading.
4. The Court shall issue the order after hearing.

19. 9:00 AM CASE NUMBER: N25-1906

CASE NAME: JONATHAN DUNCKEL VS. RUSSELL VACARRO

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ATTORNEY FEES**

FILED BY: DUNCKEL, JONATHAN R

TENTATIVE RULING:

Petitioner Jonathan Dunckel ("Petitioner") filed a motion for an award of attorneys' fees and costs on December 17, 2025 ("Motion for Fees and Costs"). The Motion for Fees and Costs was set for hearing on May 11, 2026. No response has been filed by respondent Russel Vacarro ("Respondent").

Background

Petitioner brings this Motion for Fees and Costs after prevailing on a Request for Civil Harassment Restraining Order filed September 25, 2025. After a hearing conducted on December 3, 2025, the Court entered its Civil Harassment Restraining Order against Respondent, the restrained party.

Analysis

The Court may, in its discretion, award court costs and attorneys' fees to the prevailing party in a civil harassment restraining order proceeding. Code Civ. Proc. § 527.6(s) ("**The prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any.**") (Emphasis added); *Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802 (the decision whether to award attorney fees to a prevailing party in a civil harassment restraining order is "**a matter committed to the discretion of the trial court.**") (Emphasis added) [Construing former Code of Civil Procedure section 527.6(i) which was substantially identical in all pertinent language to the current Code of Civil Procedure section 527.6(s)].

The trial court has broad authority to determine the amount of a reasonable fee. *Holguin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1329. The trial court is under no obligation to award the full extent of fees claimed by the prevailing party and may, for example, reduce a fee award where it finds certain claimed fees were inefficient or duplicative. *Id.* at 1330.

No proof of service has been filed showing service of the motion on Respondent.

Moreover, the caption page of the Motion for Fees and Costs reflects hearing information for "DEPT:

9” and “JUDGE: Devine,” the former department and assigned judge. **This matter has been reassigned for purposes to Department 34.** No amended notice of motion appears of record on the docket.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is CONTINUED to **June 29, 2026, 9:00 a.m.**, in **Department 34** of the Court.
2. Petitioner to give notice and file proof of service on Respondent of such amended notice and the underlying motion papers.

20. 9:00 AM CASE NUMBER: N25-2269

CASE NAME: PETITION OF: ELAINE LAVAN

***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF DEFENDANT'S ANSWER**

FILED BY: LAVAN, ELAINE

TENTATIVE RULING:

Petitioner’s motion to strike portions of California State Approving Agency for Veterans Education’s answer is **granted as to affirmative defenses one and three with leave to amend, and otherwise the motion is denied.** CSAAVE may file and serve an amended answer within 10 days of notice of entry of this order.

CSAAVE’s answer included four affirmative defenses: (1) Failure to Mitigate, (2) Laches, (3) Waiver and Estoppel, and (4) Unclean Hands. Petitioner filed this motion to strike the affirmative defenses. Petitioner’s argument is that these affirmative defenses are unsupported by factual allegations, which is really an argument for a demurrer to an affirmative defense. (See, e.g. *Corrigan v. Stiltz* (1965) 233 Cal.App.2d 381, 386.) CSAAVE opposed this motion on the merits and thus, waived this procedural defect.

To the extent Petitioner is seeking to strike the affirmative defenses as irrelevant, false or improper, the Court denies that request.

The main issue here is whether CSAAVE has sufficiently pled its affirmative defenses. Generally, an answer must allege some facts to support the affirmative defenses. (See *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 384; see also *Walsh v. West Valley Mission Community College Dist.* (1998) 66 Cal. App. 4th 1532, 1546.) Although facts need not be alleged when bringing an affirmative defense based upon the statute of limitations. (Code of Civil Procedure section 458.)

In the first affirmative defense, CSAAVE alleges a failure to mitigate damages based upon the following facts: “Petitioner failed to take reasonable steps or make a reasonable effort to mitigate her disapproval of her application and any claimed damages, if any, as a result of such denial.” In their opposition CSAAVE explains what efforts Petitioner could have taken, however, those facts are not alleged here. Therefore, the Court grants the motion to strike the first affirmative defense with leave to amend.

In the second affirmative defense, CSAAVE alleges that the petition is barred by laches. The affirmative defense of laches requires pleading facts that give rise to that defense, or relying facts on the face of the petition. (*Hollenbeck Lodge (486) I.O.O.F. v. Wilshire Boulevard Temple* (1959) 175 Cal.App.2d 469, 475.) Here, CSAAVE clarified that this defense is based upon Petitioner's failure to act between August 26, 2025, and November 20, 2025. The petition was filed on November 20 and it alleges that CSAAVE denied Petitioner's application on August 26. (Pet. ¶1 and date petition was filed.) Thus, the defense of laches is sufficiently alleged. Therefore, the motion to strike the second affirmative defense is denied.

In the third affirmative defense, CSAAVE alleges that the petition is barred by waiver and/or estoppel. In the opposition, CSAAVE argues that some of facts in the petition support waiver, but they did not include those facts here. Therefore, the Court grants the motion to strike the third affirmative defense with leave to amend.

In the fourth affirmative defense, CSAAVE alleges that the petition is barred by the doctrine of unclean hands as Petitioner makes false statements in her petition. The Court finds that CSAAVE has included facts to support this affirmative defense. Therefore, the motion to strike the fourth affirmative defense is denied.

Discovery Law & Motion

21. 9:01 AM CASE NUMBER: C25-01233
CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM**
INTERROGATORIES BY DEF TOYOTA MOTOR SALES, U.S.A., INC.
FILED BY: MASSOUD, SAYED
TENTATIVE RULING:

Withdrawn by Notice of Withdrawal filed May 5, 2026. The matter is DROPPED from calendar.

22. 9:01 AM CASE NUMBER: C25-01233
CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL**
INTERROGATORIES BY DEF TOYOTA MOTOR SALES, U.S.A., INC.
FILED BY: MASSOUD, SAYED
TENTATIVE RULING:

Withdrawn by Notice of Withdrawal filed May 5, 2026. The matter is DROPPED from calendar.

23. 9:01 AM CASE NUMBER: C25-01233

CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION BY DEF TOYOTA MOTOR SALES, U.S.A., INC.**

FILED BY: MASSOUD, SAYED

TENTATIVE RULING:

Withdrawn by Notice of Withdrawal filed May 5, 2026. The matter is DROPPED from calendar.

Law & Motion

Add On

24. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO TO MEHRZAD AZARI**

FILED BY: GARAVENTA, SILVIO

TENTATIVE RULING:

Before the Court are two separate motions brought by plaintiff Silvio Garaventa, Jr. ("Plaintiff"), a motion to compel further responses to discovery requests and a motion addressing reopening discovery deadlines and related relief.

Background

On January 27, 2026, Plaintiff filed a Motion to Reopen Discovery and/or, in the alternative, Allow Plaintiff to Serve a Tardy Expert Witness Disclosure (the "Motion to Reopen Discovery"). The Motion to Reopen Discovery was originally set for hearing on July 23, 2026. However, the motion was advanced, upon ex parte application, for hearing on May 7, 2026. See Order entered February 3, 2026. Following reassignment of this case, the matter was reset for hearing on May 4, 2026. The Court, *sua sponte*, continued the matter from May 4, 2026 to May 11, 2026.

Plaintiff filed a Request for Judicial Notice in connection with the Motion to Reopen Discovery (the "RJN"). The RJN is DENIED as unnecessary. The RJN relates to an ex parte application in this case on January 12, 2026 and the Court's January 14, 2026 Order (the "January 14th Order"). Both pleadings appear of record and the Court need not take judicial notice of matters in the same case before the Court. The Court has considered its file, including those pleadings.

By the Court's January 14th Order, the prior February 23, 2026 trial date was vacated. The order also declined to extend any discovery related deadlines. See January 14th Order, p.2.

The Court notes that it recently set the matter for a long-cause court trial on November 16, 2026. See Order entered April 22, 2026 (the "April 22nd Order").

On January 22, 2026, Plaintiff filed a motion to compel further responses to discovery requests ("Motion to Compel Further Responses") propounded upon defendant Mehrzad Azari ("Defendant").

The discovery requests at issue in the Motion to Compel Further Responses (collectively, the “Discovery Requests”) are Plaintiff’s Requests for Production of Documents, Set Two (the “RPDs”). The Motion to Compel Further Responses was set for hearing on May 7, 2026. Following reassignment of this case, the matter was reset for hearing on May 4, 2026. The Court, *sua sponte*, continued the matter from May 4, 2026 to May 11, 2026.

Both motions are opposed. On April 21, 2025, Defendant filed opposition papers to both motions, including a number of opposition declarations:

1. Declaration of David E. Harris (“Harris Opposition Declaration re MTC”);
2. Declaration of Emily M. Dennis (“Dennis Opposition Declaration re MTC”);
3. Declaration of Mehrzad Azari (“Dennis Opposition Declaration re MTC”); and
4. Declaration of Emily M. Dennis in opposition to Motion to Reopen Discovery (“Dennis Opposition Declaration re Motion to Reopen Discovery”).

Defendant also filed an opposition Separate Statement (the “Opposition Separate Statement”).

Analysis

1. Timeliness of Motion to Compel Further Responses

Plaintiff’s Opposition contends that the Motion to Compel Further Responses are time barred because the time has come and gone for the hearing of discovery related motions. See Code Civ. Proc. § 2024.020(a) (“Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, **and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.**”) (emphasis added).

The date initially set for the trial of the action was February 23, 2026. This was set by the Court on June 27, 2025. See Minute Order dated July 2, 2025 (regarding Case Management Conference held June 27, 2025). The 15th day before that date was February 8, 2025, a Sunday. Accordingly, the deadline rolled over to the next court date, Monday, February 9, 2026. See CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) (“CJER Civ. Pro.—Discovery”), § 8.6.

This Motion to Compel Further Responses was not filed until January 22, 2026, less than three weeks before that deadline. Of course, the motion was given a hearing date months out, as is typical for a discovery motion.

The companion Motion to Reopen Discovery was brought a few days later. A subsequent *ex parte* advanced that motion for hearing in May 2026, as noted above. While that motion could, at least in theory, address the time bar for the hearing of the Motion to Compel Further Responses, Plaintiff did not otherwise seek to advance the hearing specifically on Motion to Compel Further Responses in the days between its filing and February 9, 2026.

In any event, the ability to hear the Motion to Compel Further Responses turns on the Court’s ruling on the Motion to Reopen Discovery. As set forth below, the Court denies the request to generally reopen discovery and all discovery related deadlines, only permitting certain Further Permitted Discovery. The Further Permitted Discovery does not include written discovery such as document inspection demands and production. Therefore, the Motion to Compel Further Responses is time barred and the Court need not reach its merits.

The Court, does however, make the observation that there is significant information in the record that

there may be other avenues to seek some or all of the relevant documentation sought by Plaintiff in advance of the new trial date.

2. Sanctions Regarding Motion to Compel Further Responses

When properly requested, monetary sanctions are mandatory against the party losing on a motion to compel further responses to discovery requests unless the court finds “substantial justification” for that party’s position or other circumstances making the sanction “unjust.” Code Civ. Proc. § 2031.310(h); see Weil & Brown, et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) § 8:1900 *et seq.*

In light of the good faith arguments in favor of a possible reopening of discovery, as discussed below, the Court finds that there was substantial justification for the moving party’s effort to prosecute the Motion to Compel Further Responses. The Court does not award sanctions against the non-prevailing moving party.

3. Motion to Reopen Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Once the discovery cutoff date has run and discovery has closed, the only means provided in the Civil Discovery Act for reopening discovery is motion for leave of court. See Code Civ. Proc. § 2024.050(a) (“On motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set.”); see also CJER Civ. Pro.—Discovery, § 8.5.

The Court has discretion whether to grant or deny such motion and “shall take into consideration any matter relevant to the leave requested,” including the factors enumerated in Code of Civil Procedure section 2024.050. See Code Civ. Proc. § 2024.050(b) (“(1) The necessity and the reasons for the discovery[;] (2) The diligence or lack of diligence of the party seeking the discovery or the hearing of a discovery motion, and the reasons that the discovery was not completed or that the discovery motion was not heard earlier[;] (3) Any likelihood that permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party [; and] (4) The length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action.”)

Sanctions are also mandatory against a non-prevailing party on such a motion. See Code Civ. Proc. § 2024.050(c) (“[t]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to extend or to reopen discovery, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”).

The Court has considered both sides’ lengthy recitations of the procedural history of this case and the proceedings specifically as relates to the vacating of the prior February 23, 2026 trial date. The Court has considered the timing and circumstances of the ongoing discovery matters and both parties’

views on the discovery proceedings to date.

Assertions about what is “customary” with respect to the continuation of trial-related cutoffs are of marginal persuasive force regarding whether the Court should generally grant leave to reopen discovery. See Declaration of Richard T. Bowles filed January 27, 2026, ¶12 *et seq.* The Court, however, has considered the described “mistaken assumption” as relates, specifically to the failure to timely serve an expert disclosure statement.

The Court grants leave to reopen discovery and complete the following discovery proceedings (the “**Further Permitted Discovery**”):

1. The oral depositions of all parties not previously taken and completed;
2. The disclosure and depositions of any expert witnesses;
3. The oral depositions of any other third party if the parties **mutually agree** that the deposition of the particular third party is necessary and appropriate to facilitate an orderly trial presentation; and
4. Any records subpoenas previously served on or before the discovery cutoff date based on the prior February 23, 2026 trial date.

In all other respects, the Court denies the Motion to Reopen Discovery and declines to exercise its discretion to reopen discovery or extend any discovery cutoff or discovery related hearing deadlines.

The Further Permitted Discovery does not include other forms of written discovery such as interrogatories, document production requests or third party records subpoenas served after the discovery cutoff date based on the prior February 23, 2026 trial date. Nor does leave to complete oral depositions include further production of documents pursuant to any prior production requests contained in any notice of deposition or otherwise. The parties are, of course, free and indeed encouraged to voluntarily produce any further documents not previously produced to facilitate orderly deposition(s) and/or trial presentation.

The parties are admonished to redouble their efforts to meet and confer in good faith to accomplish scheduling and completion of further depositions, including experts, well in advance of the current trial date and otherwise in accordance with this order.

For good cause shown, the Court hereby orders that the date of any expert exchange pursuant to any prior demand shall be Friday, July 10, 2026.

4. Sanctions Regarding Motion to Reopen Discovery

The Court has granted partial relief on the Motion to Reopen Discovery and to the extent either party was unsuccessful in making or opposing the motion, the Court finds that there was substantial justification for each party’s position. The Court does not award sanctions against any party.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Response is **DENIED**.
2. The Motion to Reopen Discovery is **GRANTED IN PART** and **DENIED IN PART**, as further set forth above.

3. The Court shall issue the order after hearing.

25. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION IN RE: REOPEN DISCOVERY AND/OR IN THE ALTERNATIVE, ALLOW
PLAINTIFF TO SERVE TARDY EXPERT WITNESS DISCLOSURE**

FILED BY: GARAVENTA, SILVIO

TENTATIVE RULING:

See LINE 25 above.